

UNITED STATES DISTRICT COURT FOR THE
EASTERN DISTRICT OF NEW YORK

-----X
SHAMAR DALEY,

Plaintiff,

-against-

THE CITY OF NEW YORK
DETECTIVE DONNELL MYERS,
AND POLICE OFFICER NICHOLAS NEVE,

Defendants.
-----X

COMPLAINT

JURY TRIAL
DEMANDED

Plaintiff, SHAMAR DALEY, by and through his attorneys, **THE LAW OFFICES OF
MICHAEL S. LAMONSOFF, PLLC**, as and for his Complaint, respectfully alleges, upon
information and belief:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the United States of America.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and the Fourth and Fourteenth Amendments to the United States Constitution.
3. Jurisdiction is founded upon 28 U.S.C. §§ 1331, 1343, and 1367.

VENUE

4. Venue is properly laid in the Eastern District of New York under U.S.C. § 1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

PARTIES

6. Plaintiff, SHAMAR DALEY, is, and has been, at all relevant times, a resident of the City and State of New York.
7. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
8. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, THE CITY OF NEW YORK.
9. At all times hereinafter mentioned, the individually named defendant, DETECTIVE DONNELL MYERS, was a duly sworn member of said department and was acting under the supervision of said department and according to his official duties.
10. At all times hereinafter mentioned, the individually named defendant, POLICE OFFICER NICHOLAS NEVE, was a duly sworn member of said department and was acting under the supervision of said department and according to his official duties.

11. At all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or CITY OF NEW YORK.
12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant, THE CITY OF NEW YORK.
13. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant, THE CITY OF NEW YORK.

FACTS

14. On November 19, 2013, at approximately 9:00 p.m., plaintiff SHAMAR DAELY was lawfully walking near the intersection of on 133rd Street and Rockaway Boulevard, in the County of Queens, City and State of New York.
15. At that time and place, the Defendants arrived on duty, in plain clothes, and in an unmarked vehicle.
16. Without any explanation or excuse, the Defendants exited their vehicle and began chasing the Plaintiff.
17. The Defendants had not ordered the Plaintiff to do anything.
18. The Plaintiff was not engaged in any illegal or suspicious activity.
19. There was no reasonable basis for the Defendants to approach and begin chasing Plaintiff.

20. Defendant Myers caught the Plaintiff and slammed him face first to the concrete ground.
21. Defendant Myers and Defendant Neve then began beating the Plaintiff.
22. Defendant Myers punched the Plaintiff in his face.
23. As the beating by the Defendants continued, the Plaintiff repeatedly requested medical attention and asked to go the hospital.
24. The Defendants responded to Plaintiff's requests for help by continuing to beat him and by taunting him.
25. The Defendants then applied excessively tight handcuffs to the Plaintiff's wrists, causing him to experience pain in his hands and wrists.
26. The Plaintiff requested that the Defendants loosen his handcuffs, told them that the handcuffs were causing pain to his hands and wrists, and that the handcuffs were too tight.
27. In response, the Defendants tightened the Plaintiff's handcuffs even more and did not loosen the handcuffs.
28. Despite the absence of any evidence of wrongdoing or criminal activity in the part of the Plaintiff, the Defendants searched the Plaintiff.
29. The search revealed no evidence of any guns, drugs or contraband.
30. Plaintiff was not engaged in any suspicious, illegal, violent, or threatening behavior.
31. Despite the absence of any wrongdoing on the part of the Plaintiff, Defendants formally arrested him.
32. The Defendants eventually took the Plaintiff to a local area hospital where he was diagnosed with new orbital and nasal fractures.
33. The doctors at the hospital also noted abrasions and swelling in the Plaintiff's head and

face.

34. At no time on November 19, 2013 did Plaintiff commit any crime or violation of law.

35. At no time on November 19, 2013 did Defendants possess probable cause to arrest Plaintiff or to order Plaintiff's arrest.

36. At no time on November 19, 2013 did Defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest Plaintiff.

37. Nevertheless, after the hospital, the Defendants transported the Plaintiff to the stationhouse of a local area precinct.

38. Plaintiff was held for several hours at the stationhouse before he was transported to Queens County Central Booking where he was held for several hours pursuant to false allegations made by the Defendants.

39. Specifically, Defendant Myers swore out a criminal complaint containing false allegations against the Plaintiff.

40. Plaintiff was eventually arraigned on this criminal court complaint.

41. The Plaintiff was eventually released from custody and was forced to make several court appearances for nearly three years pursuant to the Defendants' false allegations.

42. The Defendants provided knowingly false and misleading information to prosecutors at the Queens County District Attorney's Office.

43. As a result of the foregoing, Plaintiff Shamar Daley sustained, *inter alia*, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

44. All of the aforementioned acts of Defendants, their agents, servants and employees, were carried out under the color of state law.

45. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and were therefore in violation of 42 U.S.C. Section 1983.
46. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
47. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.
48. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted custom, usage, practice, procedure or rule of respective municipality/authority, which is forbidden by the Constitution of the United States.

FIRST CLAIM FOR RELIEF FOR
FALSE ARREST UNDER 42 U.S.C. § 1983

49. Plaintiff SHAMAR DALEY repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
50. As a result of the Defendants' conduct, Plaintiff was subjected to illegal, improper and false arrest, taken into custody, and caused to be falsely imprisoned, detained, and confined without any probable cause, privilege, or consent.
51. As a result of the foregoing, Plaintiff's liberty was restricted, he was put in fear for his

safety, and he was falsely arrested without probable cause.

SECOND CLAIM FOR RELIEF
FOR EXCESSIVE FORCE
UNDER 42 U.S.C. SECTION 1983

- 52. Plaintiff repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
- 53. There was no legal justification for the Defendants use of force against the Plaintiff.
- 54. The Defendants beat Plaintiff causing him to sustain physical injuries including fractures.
- 55. By so doing, the individual Defendants, individually and collectively, subjected Plaintiff to excessive force and thereby violated, conspired to violate, and aided and abetted in the violation of Plaintiff's rights under the Fourth and Fourteenth Amendments of the United States Constitution.
- 56. By reason thereof, the individual Defendants have violated 42 U.S.C. §1983 and caused Plaintiff to suffer emotional and physical injuries, mental anguish, incarceration and the deprivation of liberty, and the loss of his constitutional rights.

THIRD CAUSE OF ACTION
FOR DENIAL OF FAIR TRIAL AND
FABRICATION OF EVIDENCE
UNDER 42 U.S.C. SECTION 1983

- 57. Plaintiff repeats the allegations contained in each of the foregoing paragraphs as though stated fully herein.
- 58. At no time did defendants have any legal basis for arresting or imprisoning plaintiff, or commencing criminal process, nor was there any reasonable basis to believe said conduct set forth herein was lawful, reasonable, or otherwise appropriate.
- 59. Defendants willfully and intentionally seized, searched, detained, and arrested plaintiff

without probable cause, and without a reasonable basis to believe such cause existed.

60. Defendants misrepresented and falsified evidence before the Queens County District Attorney and Grand Jury.
61. Defendants did not make a complete and full statement of facts to the District Attorney or Grand Jury.
62. Defendants withheld exculpatory evidence from the District Attorney and Grand Jury.
63. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff.
64. Defendants lacked probable cause to initiate criminal proceedings against plaintiff.
65. Defendants acted with malice in initiating criminal proceedings against plaintiff.
66. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff.
67. Defendants lacked probable cause to continue criminal proceedings against plaintiff.
68. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.
69. By so doing, the individual defendants, individually and collectively, subjected plaintiff to fabrication of evidence, denial of fair trial, and denial of due process, and thereby violated, conspired to violate, and aided and abetted in the violation of plaintiff's rights under the Fourth and Fourteenth Amendments of the United States Constitution.
70. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiff to suffer emotional and physical injuries, mental anguish, incarceration and the deprivation of liberty, and the loss of his constitutional rights.

FOURTH CLAIM FOR RELIEF
FOR MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

71. Plaintiff, repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
72. Defendants arrested, searched, and incarcerated plaintiff SHAMAR DALEY, in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said search, arrest and incarceration would jeopardize Plaintiff's liberty, well-being, safety, and violate his constitutional rights.
73. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.
74. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.
75. Those customs, policies, patterns, and practices include, but are not limited to:
 - i. requiring officers to make a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
 - ii. requiring precincts to record a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
 - iii. failing to take any measures to correct unconstitutional behavior when brought to the attention of supervisors and/or policy makers;
 - iv. failing to properly train police officers in the requirements of the United States Constitution.
76. The aforesaid customs, policies, usages, practices, procedures and rules of THE CITY OF

NEW YORK and the New York City Police Department directly cause, *inter alia*, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics;
- ii. arresting individuals regardless of probable cause in order to positively affect precinct-wide statistics;
- iii. falsifying evidence and testimony to support those arrests;
- iv. falsifying evidence and testimony to cover up police misconduct.

77. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department constitute a deliberate indifference to the safety, well-being and constitutional rights of Plaintiff, SHAMAR DALEY.

78. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.

79. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff as alleged herein.

80. As a result of the foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department, Plaintiff was placed under arrest unlawfully.

81. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiff.

82. Defendants, collectively and individually, while acting under color of state law,

acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of Plaintiff's constitutional rights.

83. All of the foregoing acts by defendants deprived Plaintiff of federally protected constitutional rights, particularly their Fourth and Fourteenth Amendment rights to be free from unreasonable search and seizure.

WHEREFORE, the Plaintiff respectfully requests judgment against Defendants on each of the foregoing causes of action as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. §1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
October 27, 2016

Respectfully submitted,

**LAW OFFICES OF MICHAEL S.
LAMONSOFF, PLLC**
Counsel for the Plaintiff

/s/
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